RESOLUTION MEPC.51(32) adopted on 6 March 1992
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1978 RELATING TO THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973RESOLUTION HEPC. 51(32)
adopt ed on 6 Harch 199 2
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1978 RELATING TO THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973
(Discharg e criteria of Annex 1 of HARPOL 73/78)
THE MARINE ENVIRONMENT PROTECTION COMMITTEE,
RECALLING Article 38(a) of the Convention on the International Maritime Organization concerning the functions of the Committee,
NOTING article 16 of the International Convention for the Prevention of Pollution from Ships, 1973 (hereinafter referred t o as the "1 973 Conven tion"), and article VI of the Protocol of 1978 relating t o th e International Convention for the Prevention of Pollution from Ships, 1973 (hereinafter referred to as the "1978 Protocol"), which confer upon the appropriate body of the Organization the function of considering and adopting amendments to the 1973 Convention, as modified by the 1978 Protocol (HARPOL 73/78),

referred to as the "1978 Protocol"), which confer upon the appropriate body of the Organization the function of considering and adopting amendments to the 1973 Convention, as modified by the 1978 Protocol (HARPOL 73/78),
RECALLING the objec tive of HARPOL 73/78 t o achieve the compl e te elimination of intentional pollution of the marin e environ ment by oil,
DESIRING in this regard to reduce even further operational pollution from ships,
HAVING CONSIDERED, at its thirty-second session, amendments t o the 1978 Protocol proposed and circulated in acc or dan ce with arti cle l6(2)(a) of the 1973 Convention,
1. ADOPTS, in ac cordance with arti cle 16(2)(d) of the 1973 Convent ion, amendments to the Annex of the 1978 Protocol, th e text of which is set out in the Annex to the pre sen t resoluti on;
2. DETER."IINES, in accordance with article 16(2)(f)(iii) of th e 1973 Convention, that the amendments shall be deemed t o hav e been accepted on 6 January 1993, unless prior to this date one third or more of the Parties, or the Parties the combined merchant fleets of which co nstitute fifty per cent

1973 Convention, that the amendments shall be deemed t o hav e been accepted on 6 January 1993, unless prior to this date one third or more of the Parties, or the Parties the combined merchant fleets of which co nstitute fifty per cent or more of the gross tonnage of the world's mercha nt fleet, have communicated to the Organization their objections to the amendments;

3. INVITES the Parties t o note that, in ac co rdan ce with artic le 16(2)(g)(i i) of the 1973 Convention, the amendme nts shall enter into forc e o n 6 July 199 3 upon their acceptance in accordance with paragraph 2 above;

4. REQUESTS the Secretary-General, in conformity with article 16(2)(e) of the 1973 Convention, to transmi t to all Parties to HARPOL 73/78 certi fied copies of the present resolution and the text of the amendments contained in th e Annex;

5 . FURTHER REQUESTS the Secretary-General to transm i t copies of the resol ut ion and its Annex to the Members of the Organization which are not Parties to HARPOL 73/78.

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not Parties to HARPOL 73/78.

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ANNEX

~~ENDHENTS TO ANNEX I OF MARPOL 73/78

The regulations of Annex I are ame nded as fol l ows :

Re gu l ation 9

.1 The ex isting text of para graph (l)(a)(iv) is replaced by the foll owing:

" (iv) The instant an eou s rate of di sch arg e of oil cont e nt do es not exceed 30 litres per nautical mile" .

. 2 The existing text of paragraph (l)(b) i s r ep la ced by the follo vin g:

IOCb) fr om a ship of 400 ton s g ro ss tonnage and above oth er than an oil ta nker and from machi nery space bi lges excluding ca r go pump-room b ilge s of an oil tanker unless mixed wit h oil cargo residue:

(i) th, ship i, not wi t h in a spe cia l area;

(ii) t h, ship i, pro ceed ing ,n route;

(iii) th, oi 1 c ontent of th, effluent wit ho ut dil u tion does not eXceed 1\ parts P" mi 11 i on; and

(iv) the ship has in ope ration equi pment as req uired by regul;,ttion 16 of this Annex."

(ii) t h, ship i, pro ceed ing ,n route;
(iii) th, oi 1 c ontent of th, effluent wit ho ut dil u tion does not eXceed 1\ parts P" mi 11 i on; and
(iv) the ship has in ope ration equi pment as req uired by regul;,ttion 16 of this Annex."

. 3 Paragraph (4) is amended by deleting the entire seco nd senten ce, including suhitems {a} (d) .

4 A new para grap h (7) is added as follows :

" (7) In th e c as e 0 f a sh i p, referred t o in re gula tion 16(6) 0 f this Annex, not fitted with equipment as r equired by reg ul at i on l6 (1) or 16(2) of t his Annex, th e provisions of para graph l(b) of this re gulation ~il1 not app ly until 6 Jul y 1998 or t he date on wh ich th e ship is fitt ed with such equipment, whichever is t he earlier. Un til t his date any dis charge f rom maChinery s pace ~i1ges io t a the sea of oi l or oi l y mixtures fr om such a ship shall be prohibited except when all the f ollowing co nd itions are sati sfied:

(a) the oi l y mixt ure does not originate from the car go pump-room bil ges;
(b) the oi l y mixture is not mixed with oil cargo residue s;
(c) th e ship is no t withi n a special area;

all the f ollowing co nd itions are sati sfied:
(a) the oi l y mixt ure does not originate from the car go pump-room bil ges;
(b) the oi l y mixture is not mixed with oil cargo residue s;
(c) th e ship is no t withi n a special area;
(d) the ship is more than 12 nautical miles from the nearest land;
(e) the ship is pro ceed i ng en route;
(f) t he oil content o f the efflue nt i s less than 100 pa rts pe r mi ll ion; a nd

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(g) the ship has in operation oily-water separating equipment of a design approved by the Administ r ation. taking into account the specification recommended by the Organization*."

A footnote should be added to paragraph (7)(g) as follows;

"* Reference is made to the Rec ommendati on on International Performance Specifications for Oily-Water Separating Equipment and Oil Content Met ers adopted by the Organization by resolution A.393{X)."

2 Regulation 10

.1 Paragraph (2)(0) is amended to read:

Specifications for Oily-Water Separating Equipment and Oil Content Met ers adopted by the Organization by resolution A.393{X)."

2 Regulation 10

.1 Paragraph (2)(0) is amended to read:

"(b) any discharge into the sea of oil or oily mixture from a ship of less than 400 tons gross tonnage. other than an oi 1 tanker, shall be prohibited while in a special ares, except when the oil content of the effluent without dilution does not exceed 15 part s per mill io n",

.2 Paragraph (3)(b)(v) is amended by changing the cross-reference therein from 16(7) to 16(5).

) Regulation 16

The existing text of this regulation is replaced by the following:

"Regulation 16

Oil diSCharge monitoring and contro l system and oil filtering equipment

(1) Any ship of 400 tons gross tonnage and above but less than 10,000 tons gross tonnage shall be fitted with oil filtering equipment complying ~ith paragraph (4) of this regu l ati on. Any such ship which carries large quantities of oil fuel shall comply with paragraph (2) of this regulation or paragraph (1) of regulation 14.

(2) Any ship of 10,000 tons gross tonnage and above shall be provided

ship which carries large quantities of oil fuel shall comply with paragraph (2) of this regulation or paragraph (1) of regulation 14.
(2) Any ship of 10,000 tons gross tonnage and above shall be provided with oil filtering equipment, and with arrangements for an alarm and for automatically stopping any discharge of oi ly mixture when the oil content in the effluent exceeds 15 parts per million.
(3) (a) The Administration may waive the requirements of paragraphs (1) and (2) of this re gula tion for any ship engaged exclusively on voyages within special areas provided that all of the following conditions are complied with:
(i) the ship is fitted with a holding tank havin~ a volume adequate. to the satisfa ction of the Administration, f or the total retention on board of th e oily bilge water;
(ii) all oily bilge water is retained on board for subsequent discharge to reception facilities;
(iii) the Administration has determined that adequate reception facilities aTe available t o recei ve such oily bi Lge water in II sufficient number of ports or terminals the ship cslls at;
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(iii) the Administration has determined that adequate reception facilities aTe available t o recei ve such oily bi Lge water in II sufficient number of ports or terminals the ship cslls at;

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(iv) the International oil Pollution Prevention Certificate, when required, is endorsed t o the effec t that th e ship is exclusively engaged on the voyages within special areas; and

(v) the quantity, time, and port of the discharge are recorded in the oil Record Book .

(b) The Administration shall ensure that ships of l ess than 400 tons gross tonnage are eQuipped, as far as practicable, to retain on board oi l or oily mixtures or discharge them in accorda nce with the requirements of regulation 9(1)(b) of this Annex.

(~) Oil filtering equipment referred to in paragraph (I) of this regulation sha ll be of a design approved by the Administration and shall be such as will ensure that any oily mixture discharged in to the sea after pa ssing thr ough t he system has an oil content not

regulation sha ll be of a design approved by the Administration and shall be such as will ensure that any oily mixture discharged in to the sea after pa ssing thr ough t he system has an oil content not exceeding 15 parts per million. In considering th e design of such equipment, th e Administration shall have r eg ard t o the specification re commended by the Organization*.

(5) Oil filtering equ i pment referred to in pa ragraph (2) of this re gulati on s hall be of a design appr oved by th e Administration and sha ll be such as will ensure t hat any oily mixt ure discharged into the sea after pa9sing through the system or systems has an oil content not exceeding 15 parts per million . It shall be provided wi th alarm arrangements to indicate when this level cannot be maintained. The system shall also be provided with arrangements such as will ensure that any discharge of oily mixtures is automAtically stopped when the oil content of th e effluent exceeds 15 parts per mill i on. In considering the design of such equipment and arra ngemen ts, th e Administration shall have regard to the specification recommended by th e Organization*.

15 parts per mill i on. In considering the design of such equipment and arra ngemen ts, th e Administration shall have regard to the specification recommended by th e Organization*.

(6) For shi ps delivered before 6 July 1993 the requirements of this regulation shall apply by 6 July 1998 provided that these ships can operate with oily-water separating equipment (100 ppm equipment) . "

A foo tn ote shou ld be added to paragraphs (4) and (5) 8S fol10ws~

"* Reference is made t o the Recommendation on Internati onal Perf orma nce Spec ifica tions for Oily -Water Separa tin g Equipment and Oil Content Meters adopted by the Organizati on by resolution A.393(X)."

4 Regulation 21

.1 Subpara graph (c) is amended by deleting the first five \lords, i . e., "in any special area and"

2 Subparagraph (d) is deleted.

5 Forms A and B of Supplements to the IOPP Certificate

Items 2.2 and 2.3 in both Forms A and B of Supplements t o the IOPP Certificate are replaced by the fo l lowing:

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Certificate are replaced by the fo l lowing:
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OF POLLUTION FROM SHIPS, 1973- 5 -
"2.2 Type of oil filtering equipment fitted;
2.2.1
2.2 . 2
oil filtering (15 ppm) equipment
(regulation 16(4»
oil filtering (15 ppm) equipment with alarm and
automatic stopping device (regulation 16(5»
2.3 The ship is allowed to operate with the existing
equipment until 6 July 1998 (regulation 16(6» and
fi tted wi th:
2.3.1
2. 3. 2
2.3.3
Oily-water separating (100 ppm) equipment
Oil filtering (15 ppm) equipment without alarm
Oil filtering (15 ppm) equipment with alarm
and manual stopping device
If
If
I,"
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TO THE INTERNATIONAL CONVENTION FOR THE PREVENTION
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